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2025 California Code

Business and Professions Code - BPC

DIVISION 7 - GENERAL BUSINESS REGULATIONS

PART 2 - PRESERVATION AND REGULATION OF COMPETITION

CHAPTER 2 - Combinations in Restraint of Trade

ARTICLE 2 - Prohibited Restraints on Competition

Section 16729.

Universal Citation:

CA Bus & Prof Code § 16729 (2025) 

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16729. (a) It shall be unlawful for a person to use or distribute a common pricing algorithm as part of a contract, combination in the form of a trust, or conspiracy to restrain trade or commerce in violation of this chapter.

(b) It shall be unlawful for a person to use or distribute a common pricing algorithm if the person coerces another person to set or adopt a recommended price or commercial term recommended by the common pricing algorithm for the same or similar products or services in the jurisdiction of this state.

(c) Nothing in this section shall impair or limit the applicability of antitrust laws.

(d) For purposes of this section, the following definitions apply:

(1) “Antitrust laws” means the provisions of this part.

(2) “Commercial term” includes, without limitation, any of the following:

(A) Level of service.

(B) Availability.

(C) Output, including quantities of products produced or distributed or the amount or level of service provided.

(3) “Common pricing algorithm” means any methodology, including a computer, software, or other technology, used by two or more persons, that uses competitor data to recommend, align, stabilize, set, or otherwise influence a price or commercial term.

(4) “Distribute,” “distribution,” and “distributing” include selling, licensing, providing access to, or otherwise making available by any means, including through a subscription or the sale of a service.

(5) “Person” has the same meaning as defined in Section 16702 and does not include the end consumer of a product or service.

(6) “Price” means the amount of money or other thing of value, whether tangible or not, expected, required, or given in payment for any product or service, including compensation paid to an employee or independent contractor for services provided.

(Added by Stats. 2025, Ch. 338, Sec. 1. (AB 325) Effective January 1, 2026.)

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